

Form 1

**NATIONAL RAILROAD ADJUSTMENT BOARD
FIRST DIVISION**

**Award No. 31820
Docket No. 51647
24-1-NRAB-00001-230242**

The First Division consisted of the regular members and in addition Referee Erica Tener when award was rendered.

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PARTIES TO DISPUTE: (
(Union Pacific Railroad Company

STATEMENT OF CLAIM:

“Claim of Morrill Engineer M G Elledge for reinstatement to service with all rights unimpaired, removal of all notations of this discipline from his personal record, and restoration of his disciplinary record to the status at which it stood prior to the instant case with no interruption to any retention period, with compensation for all personal monetary damages and all lost time and benefits as a result of this matter, including but not limited to time lost if held out of service prior to the investigation, time lost while attending the investigation, and all wage equivalents to which entitled (including vacation benefits, all insurance benefits and monetary loss for such coverage) while improperly disciplined. Claim is also made for a penalty if Carrier fails to timely comply with a sustaining Award.”

FINDINGS:

The First Division of the Adjustment Board, upon the whole record and all the evidence, finds that:

The carrier or carriers and the employee or employees involved in this dispute are respectively carrier and employee within the meaning of the Railway Labor Act, as approved June 21, 1934.

This Division of the Adjustment Board has jurisdiction over the dispute involved herein.

Parties to said dispute were given due notice of hearing thereon.

Carrier issued the Claimant a Notice of Investigation dated January 9, 2023 directing Claimant to attend an investigation hearing to determine responsibility for the following charge(s):

“On 12/29/2022, at the location of Bill, Wy, near Milepost 83.3, Orin Subdivision, at approximately 01:34 hours, while employed as a[n] ENGINEER, you allegedly were careless of safety and demonstrated negligence towards the interest of the company or its employees when you interfered with a locomotive-mounted safety device by blocking the inward facing camera with a visor.

**1.6 Conduct - Negligent
1.23.1 Locomotive – Mounted Safety Devices”**

An investigation hearing was conducted on January 25, 2023. By letter dated February 3, 2023, the Claimant was notified he had been found guilty and assessed the penalty of dismissal. The Organization appealed the decision by letter dated April 3, 2023. The Carrier denied the appeal by letter dated May 31, 2023. This matter is now properly before this Board for final adjudication.

The Carrier argues it submitted substantial evidence of the Claimant’s culpability for the charged violation. The Claimant was assigned to train UP 8960 on December 28, 2022. Carrier needed to investigate an incident that occurred the following day and discovered that the view from the cab-image camera (CIC) had been blocked by the sun visor in the cab. Based on video evidence, the Carrier determined the Claimant tampered with and disabled the functionality of the CIC when he flipped the sun visor to an upright position. The Carrier argues this was a deliberate action by the Claimant and that it created an unsafe condition. The Claimant was unable to offer a reasonable explanation for his actions, only that it was unintentional.

The Carrier argues the Claimant committed a serious safety violation and that dismissal from service is warranted.

The Organization argues the Carrier lacked sufficient evidence to support the claim that the Claimant “tampered” with a safety device. It contends the Claimant

moved the visor out of his way so that he could see more clearly through the window. Blocking the CIC was an unintended consequence of his actions.

The Organization points out the Claimant has worked for the Carrier for almost thirty (30) years and has had a relatively clean disciplinary record. For these reasons, the Organization argues dismissal too harsh a penalty.

The Board has carefully reviewed the record and finds no procedural errors preclude us from reaching the merits of this case. The Board finds the Carrier established the Claimant's culpability for the charged violations. While some discipline is warranted, we find that dismissal is unwarranted. Claimant has had a long and distinguished career with the Carrier. In light of the foregoing, we find that the Claimant's discipline should be reduced to a thirty (30) days actual suspension. The Claimant shall be returned to work with back pay and other privileges intact, less the thirty (30) days suspension, upon completion of the Carrier's return-to-work requirements.

AWARD

Claim sustained in accordance with the findings.

ORDER

This Board, after consideration of the dispute identified above, hereby orders that an award favorable to the Claimant(s) be made. The Carrier is ordered to make the Award effective on or before 30 days following the postmark date the Award is transmitted to the parties.

NATIONAL RAILROAD ADJUSTMENT BOARD
By Order of First Division

Dated at Chicago, Illinois, this 31st day of July 2024.